

1 STATE OF OKLAHOMA

2 2nd Session of the 60th Legislature (2026)

3 HOUSE BILL 3763

By: Turner

6 AS INTRODUCED

7 An Act relating to law enforcement; amending 70 O.S.
8 2021, Section 3311.4, which relates to continuing law
9 enforcement education; providing for additional
10 mandatory continuing education on certain issues; and
11 providing an effective date.

12 BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

13 SECTION 1. AMENDATORY 70 O.S. 2021, Section 3311.4, is
14 amended to read as follows:

15 Section 3311.4. A. Beginning January 1, 2008, and annually
16 thereafter, every active full-time peace officer, certified by the
17 Council on Law Enforcement Education and Training (CLEET) pursuant
18 to Section 3311 of this title, shall attend and complete a minimum
19 of twenty-five (25) hours of continuing law enforcement training
20 accredited or provided by CLEET which shall include a mandatory two
21 (2) hours on mental health issues and a mandatory two (2) hours on
22 domestic violence, intimate partner violence, and lethality
23 assessment protocol issues. Effective November 1, 2019, CLEET shall
24 establish appropriate training resources which shall include the

1 policies and protocols for responding to sexual assault calls,
2 guidelines for the collection and maintenance of sexual assault kits
3 and continuing education on trauma-informed sexual assault response
4 and intervention, and shall require all CLEET-certified law
5 enforcement officers to complete such training on a regular basis to
6 be determined by CLEET. CLEET shall promulgate rules to enforce the
7 provisions of this section and shall enter into contracts and
8 agreements for the payment of classroom space, training, food, and
9 lodging expenses as may be necessary for law enforcement officers
10 attending such training in accordance with subsection B of Section
11 3311 of this title. Such training and seminars shall be conducted
12 in all areas of this state at technology center schools,
13 institutions of higher education, or other approved sites.

14 B. Beginning January 1, 2017, and annually thereafter, every
15 active reserve peace officer, certified by CLEET pursuant to Section
16 3311 of this title, shall attend and complete a minimum of eight (8)
17 hours of continuing law enforcement training accredited or provided
18 by CLEET which shall include a mandatory one (1) hour on mental
19 health issues and a mandatory one (1) hour on domestic violence,
20 intimate partner violence, and lethality assessment protocol issues.

21 C. Every inactive full-time or reserve peace officer, certified
22 by CLEET, shall be exempt from these requirements during the
23 inactive status. Upon reentry to full-time active status, the peace
24 officer shall be required to comply with subsection A of this

1 section. If a full-time certified peace officer has been inactive
2 for five (5) or more years, the officer must complete refresher
3 training as prescribed by CLEET and which shall include a minimum of
4 four (4) hours of mental health education and training, within one
5 (1) year of employment. Upon reentry to active reserve status, the
6 peace officer shall be required to comply with subsection B of this
7 section. If a certified reserve officer has been inactive for five
8 (5) or more years, the certified reserve officer shall complete a
9 legal update as prescribed by CLEET. The Director of CLEET may
10 waive these requirements based on review of all records of
11 employment and training.

12 D. Every tribal officer who is commissioned by an Oklahoma law
13 enforcement agency pursuant to a cross-deputization agreement with
14 the State of Oklahoma or any political subdivision of the State of
15 Oklahoma pursuant to the provisions of Section 1221 of Title 74 of
16 the Oklahoma Statutes shall comply with the provisions of this
17 section.

18 E. Any active full-time or reserve certified peace officer, or
19 CLEET-certified cross-deputized tribal officer who fails to meet the
20 annual training requirements specified in this section, shall be
21 subject to having the certification of the peace officer suspended,
22 after the peace officer and the employer have been given written
23 notice of noncompliance and a reasonable time, as defined by the
24 Council, to comply with the provisions of this section. A peace

1 officer shall not be employed in the capacity of a peace officer
2 during any period of suspension. The suspension period shall be for
3 a period of time until the officer files a statement attesting to
4 full compliance with the provisions of this section. Suspension of
5 peace officer certification shall be reported to the district
6 attorney for the jurisdiction in which the officer is employed, the
7 liability insurance company of the law enforcement agency that
8 employed the peace officer, the chief elected official of the
9 governing body of the law enforcement agency and the chief law
10 enforcement officer of the law enforcement agency. Any officer
11 whose certification is suspended pursuant to this section may
12 request a hearing with CLEET. Such hearings shall be governed by
13 the Administrative Procedures Act except that the affected officer
14 has the burden to show CLEET why CLEET should not have the
15 certification of the officer suspended.

16 F. All certified, active full-time or reserve peace officers
17 employed, commissioned or appointed for a period of ninety (90) days
18 in a calendar year, who become inactive prior to the end of a
19 calendar year, are responsible for meeting mandatory continuing
20 education requirements as set forth in this section upon return to
21 active full-time or reserve peace officer status within sixty (60)
22 days of the date of return to employment, commission or appointment.
23 Failure to complete the mandatory continuing education within sixty
24 (60) days may result in disciplinary action as set forth in CLEET

1 Rules at OAC 390:2. Full-time or reserve certified peace officers
2 who return to active status within the calendar year they become
3 inactive must complete the annual mandatory continuing education
4 requirements outlined in this section within the remaining portion
5 of the calendar year.

6 G. Peace officers with full-time certification who worked
7 during a calendar year only as a reserve officer are required to
8 complete only the training requirements for reserve certification.
9 For purposes of the requirements outlined in subsection F of this
10 section, full-time peace officers who worked both in the capacity of
11 a full-time peace officer and reserve officer in a calendar year
12 must complete full-time continuing education requirements.

13 SECTION 2. This act shall become effective November 1, 2026.

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